

DAS DEPARTMENT OF ADMINISTRATIVE SERVICES STATEWIDE POLICY	NUMBER 107-011-330	SUPERSEDES 107-011-330 March 1, 1998
	EFFECTIVE DATE 6/10/2025	PAGE NUMBER Pages 1 of 3
	LAST REVIEWED DATE 6/10/2025	
	DIVISION Enterprise Asset Management	
POLICY OWNER Operations and Maintenance	REFERENCE/AUTHORITY ORS 276.431(2), 279.835-279.855, 283, and 346.510-346.570 OAR 125-080-0000	
SUBJECT Vending Services in State Office Buildings and Grounds Controlled by the Department	APPROVED SIGNATURE _____ Berri Leslie, DAS Director	

PURPOSE

To provide clear policies relating to vending services and food carts in state buildings and grounds which are owned, leased or controlled by the Department of Administrative Services (DAS), according to ORS 346.510 to 346.570 and OAR 125-080-0000.

The [Business Enterprise Program \(BEP\)](#) is administered by the Oregon Commission for the Blind (OCB) under the [Randolph-Sheppard Vending Stand Act](#), which covers federal properties, and [ORS 346.510 to 346.570](#). This state law provides that OCB shall operate vending facilities in or on any "public buildings or properties," defined as any building, land or other real property, owned, leased or occupied by any department or agency of the state of Oregon.

Each year, BEP conducts site surveys in governmental buildings or properties to determine the viability of installing a food service or vending operation at the location to provide self-employment opportunities to Oregonians who are legally blind and wish to run their own food concession businesses. This survey is sent to agency buyers and procurement specialists through the OregonBuys network.

APPLICABILITY

Applies to vending facilities in state office buildings and grounds owned, leased or controlled by DAS.

DEFINITIONS

Food cart: a mobile food-dispensing facility also referred to as a food concession business, such as the food cart deployed in Willson Park near the Capitol building.

Oregon Commission for the Blind (OCB): means the commission established under ORS 346.130 to 346.140.

Operator: a person who is blind, has seriously impaired vision or a vending facility manager responsible for the day-to-day conduct of the vending facility operation under a contract with DAS under ORS 346.510 to 346.570.

Qualified rehabilitation facility: those organizations defined under ORS 279.835 to 279.855.

State office building premises under the jurisdiction of the department: any office building, land or other real property owned, leased or occupied by DAS. It does not include single agency-leased facilities which are approved but not being operated by DAS.

Vending machine: a manual or coin-operated machine or a similar device used for vending articles, including machines or devices that accept electronic payment.

Vending facility:

- Shelters, counters, shelving, display and wall cases, refrigerating apparatus and other appropriate auxiliary equipment that are necessary or customarily used for the vending of articles, including an established mix of healthy vending items approved by OCB and the agency, department or political subdivision charged with maintaining the public building or property where the vending facility is located;
- Vending machines; or
- Cafeterias, snack bars or food carts used for the dispensing of foodstuffs and beverages. This type of facility must comply with policy 107-011-331 and OAR 125-80-0005

GENERAL INFORMATION

- (1) For all available vending facility locations, OCB shall be given the first right of refusal on the contract based on the terms and conditions set by DAS, according to ORS 346.520 and 346.530. Qualified rehabilitation facilities shall have a second right of refusal on the contract according to ORS 279.835 to 279.855. If more than one qualified rehabilitation facility is competing, the decision to award a contract is based on competitive bidding among them. Any vending facility or prospective locations not contracted with OCB or qualified rehabilitation facility may be selected by competitive bids.
- (2) No person, firm or state agency may place any vending facility on any state office building premises under the jurisdiction of DAS without specific authorization issued by DAS' Enterprise Asset Management Division, Operations and Maintenance Unit. Contact the help desk at facilities.helpdesk@das.oregon.gov for information regarding placement of vending machines:

Department of Administrative Services
Enterprise Asset Management, [Operations and Maintenance](#)
1240 Ferry Street SE
Salem, OR 97301-4288
Phone: 503-378-3664
- (3) DAS may determine fees for each class of vending facilities which will at least pay for the cost of space, utilities and administration. Such fee schedules may be changed by DAS as needed. DAS may permit such payments to be made quarterly.
- (4) Authorizations issued by DAS for placing vending facilities may be in the form of a contract which will specify terms and conditions governing the operation of vending facilities.
- (5) DAS reserves the right to reject any bids or proposals. Contract awards are based on appropriate qualification standards, contract terms and considerations offered to DAS by vendors.
- (6) All food cart vendors shall comply with all applicable laws of the state and ordinances of the local government jurisdictions pertaining to the vending of foods.

- (7) A vending facility operated under the provisions of ORS 346.510 to 346.570 must be used solely for the vending of commodities and articles approved by OCB and by the state agency, department or political subdivision charged with maintaining the building or property in or on which the vending facility is operated.
- (8) For cafeteria, snack bar and food cart management, policy 107-011-331 applies and OAR 125-80-0005.